

GRANT AGREEMENT

This Grant Agreement (this “Agreement”), which is by and between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center (“CRMC”), having its principal place of business at 214 East 23rd Street, Cheyenne, WY 82001, and Youth Alternatives, a division of the City of Cheyenne (“Grantee”), 1328 Talbot Court, Cheyenne, WY 82001, is effective as of the last date signed by the parties below (the “Effective Date”).

WHEREAS, CRMC operates a nonprofit, tax-exempt, general acute care hospital that provides inpatient and outpatient hospital services to residents of Laramie County, Wyoming and surrounding areas;

WHEREAS, Grantee has demonstrated that their mission is responsive to identified health priorities determined in collaboration with community stakeholders;

WHEREAS, Grantee has requested financial assistance from CRMC to implement a program that will benefit the community and aligns with the community needs assessment;

WHEREAS, CRMC desires to provide Grantee with such funding on the terms and conditions set forth herein and to ensure Grantee’s performance of certain Duties (as defined below); and

WHEREAS, the community health and benefit missions of CRMC and Grantee (collectively the “parties” and each a “party”), both of which are tax-exempt under Internal Revenue Code §501(c)(3), are consistent, and the parties have determined that the financial assistance provided by CRMC will further each of their missions.

NOW THEREFORE, in consideration of the mutual covenants and agreements that follow, CRMC and Grantee agree to the following terms:

1. Grant Funding. As compensation by CRMC to Grantee for performing its Duties hereunder (as defined below), CRMC shall pay Grantee per the payment schedule outlined in Exhibit “A,” which is attached hereto and incorporated herein by this reference. Grantee shall invoice CRMC at the beginning of each designated installment period in the exhibit, and CRMC shall pay such invoices within fifteen (15) business days of receiving such invoices provided that Grantee has met any and all deliverables or benchmarks set forth on Exhibit “A” that are conditions of Grantee’s receipt of funding.

2. Availability of Funds. Each disbursement obligation under this Agreement is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, this Agreement may be terminated at the end of the period for which funds are available. CRMC shall notify the Grantee at the earliest possible time if this Agreement will or may be affected by a funding shortage. No penalty shall

accrue to CRMC in the event this provision is exercised, and CRMC shall not be obligated or liable for any future payments as a result of termination under this section.

3. Grantee to Meet Certain Requirements. In order to qualify for the financial assistance set out above, Grantee shall perform all Duties to CRMC's reasonable satisfaction. Grantee's "Duties" are to perform all obligations set forth:

- a. In the body of this Agreement (and any laws, rules, policies and documents referenced in the body of this Agreement); and
- b. On Exhibit "A" and incorporated herein by reference.

Grantee shall prominently display CRMC's logo (to be supplied by Marketing and Communications Department) on all printed outreach, marketing, and publicity materials, only after obtaining approval of such materials from CRMC's Marketing and Communications Department.

Grantee shall identify CRMC as a Wyoming Institute of Population Health funded organization in audiovisual presentations, advertising, public service announcements, web sites, news releases and other communications.

Grantee shall display the CRMC logo at the Grantee's site, events and activities.

Grantee shall perform its Duties consistent and in accordance with (a) the applicable industry standards of care, (b) all applicable local and customary rules of ethics and conduct in Grantee's profession, (c) all applicable laws and regulations, and (d) all applicable standards of the Joint Commission, and any other accrediting organization or body that CRMC, from time to time, notifies Grantee that are applicable to its performance of its duties hereunder. Grantee warrants and represents that Grantee has the education, experience and qualifications required to perform its duties hereunder to the foregoing standards.

4. Reporting. Grantee shall provide all reasonably necessary information and make all reports to CRMC as CRMC may reasonably request to verify Grantee's proper and timely performance of its Duties hereunder.

5. Accountability. Grantee agrees to provide CRMC, upon request, a full and complete accounting as to the use of the funds it receives hereunder; said accounting to be done in accordance with generally accepted accounting principles and shall be provided to CRMC within a reasonable time. If CRMC determines that any of the funds were not utilized in accordance with the terms and conditions set forth in this Agreement, the Grantee shall repay such funds immediately to CRMC. In the event the Grantee does not repay the funds, the obligation shall be booked as a debt of the Grantee owed to CRMC. Additionally, if any restrictions are placed on Grantee's use of funds it receives hereunder, Grantee shall refund any and all funds to CRMC to the extent funds paid by CRMC have been used in a manner inconsistent with such restrictions.

6. Term and Termination; Required Approvals. This Agreement shall remain in effect until June 15, 2028. This Agreement may be terminated by either party, for any or no cause,

upon thirty (30) days prior written notice to the other party. Termination shall not relieve CRMC of its obligation to pay any properly invoiced amounts that became due and payable prior to the effective date of termination, provided that Grantee has met any applicable deliverables or benchmarks set forth on Exhibit "A" that are conditions of Grantee's receipt of funding. If either party terminates this Agreement prior to the end of the first year of its initial term, the parties shall not enter into the same or similar agreement with each other until the expiration of the first year of the initial term.

CRMC shall have no obligation to make any payments to Grantee hereunder unless and until this Agreement is signed by both parties and funding is approved by CRMC's Board of Trustees (or its designee).

7. Independent Contractor. Grantee shall not be considered at any time an employee of CRMC by virtue of this Agreement. CRMC shall not exercise any control or direction over the professional methods or manner in which Grantee performs its Duties hereunder. No relationship of employer and employee between Grantee and CRMC is created by this Agreement, it being understood that Grantee will act hereunder as an independent contractor and that Grantee shall not have any claim under this Agreement or otherwise against CRMC for vacation pay, sick leave, retirement benefits or employee benefits of any kind.

8. Professional Liability Insurance. CRMC acknowledges that Grantee is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and Grantee certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool and shall provide a letter verifying its participation in the WARM pool to CRMC.

9. Personal Services. CRMC and Grantee agree that no term of this Agreement is conditioned upon the admission, recommendation, referral or any other form of arrangement by Grantee for utilization by patients or others of any item or service offered by CRMC. CRMC and Grantee agree that the consideration exchanged hereunder is fair market value for the services provided hereunder, and that the aggregate of the services contracted for hereunder will not exceed that which is reasonable and necessary to accomplish the commercially reasonable and legitimate business purpose of the Agreement. The parties agree that no part of the consideration exchanged hereunder has been determined or taken into account the volume or value of referrals or other business generated between the parties. The parties agree that the Agreement covers all services to be provided by Grantee to CRMC pursuant to the Agreement for the term of the Agreement and specifies all the services to be provided by Grantee to CRMC hereunder.

10. Waiver of Breach. The waiver by CRMC or by Grantee of any breach of any provision of the Agreement shall not operate or be construed as a waiver of any subsequent breach by either CRMC or Grantee.

11. Non-Assignability. This Agreement shall be binding and shall inure to the benefit of CRMC, Grantee and their respective successors, heirs, and legal representatives. Neither this Agreement nor any rights hereunder may be assigned by Grantee without the written consent of CRMC. The parties agree that Grantee has contracted to provide services hereunder that are personal in nature and not susceptible to substitution or assignment by Grantee.

12. Wyoming Law and Forum. This Agreement shall be construed according to the laws of the State of Wyoming. If any action is brought to enforce or interpret this Agreement, the jurisdiction and venue shall exclusively be in the courts of Laramie County, Wyoming. Nothing in this Section shall be construed as a waiver of governmental immunity or any other immunity or defense available to either party under the Wyoming Governmental Claims Act, W.S. § 1-39-101 *et seq.*, or other applicable law.

13. Certification about status with government health programs. Grantee certifies that it, and its employees and/or agents (“Grantee Related Persons”) (a) are not now debarred, excluded or otherwise ineligible for participation in any government health care program(s); (b) have not been convicted of a felony offense in the immediately preceding seven (7) years; and (c) are not now subject to, and have no reason to believe that they are subject to, any specific investigation for violation of federal, state, or local criminal or civil law or regulation. Grantee shall report in writing to CRMC immediately if the Grantee becomes aware of such action, investigation, or effort to debar or exclude Grantee, or any Grantee Related Person, from any government health care program. Failure to disclose any relevant information regarding these matters is reason for immediate termination of this contract with cause at CRMC’s sole discretion.

14. Agreement to abide by Compliance Program. Consistent with the Office of Inspector General of the U.S. Department of Health and Human Services (OIG) initiative encouraging health care providers to engage in efforts to combat fraud and abuse in health care, CRMC has implemented a corporate compliance program that includes CRMC’s Standards of Conduct. The Standards of Conduct can be accessed at <https://www.cheyenneregional.org/wp-content/uploads/2012/11/Conduct-Booklet-20111.pdf>. It is the policy of CRMC that all entities doing business with CRMC follow the Standards of Conduct. Grantee acknowledges that it has received the Standards of Conduct. Grantee agrees that neither Grantee, nor its officers, directors, agents, employees or subcontractors will take any action to induce or result in CRMC’s violation of the Standards of Conduct.

15. Confidentiality.

Grantee shall use its best efforts to protect the confidentiality of CRMC records and information, including, but not limited to, those related to financial, operational, and employee information of CRMC and shall comply with applicable federal, state and local laws and regulations relating to such records and information of the CRMC.

Grantee acknowledges that medical information, including payment information, regarding CRMC’s patients must be kept confidential. The parties understand and agree that the Health Insurance Portability and Accountability Act of 1996 (“HIPAA”) and under regulations promulgated thereto, the *Standards for Privacy of Individually Identifiable Health Information* and the *Security Standards* (45 C.F.R. Parts 160, 162 and 164, issued by the Department of Health and Human Services, hereinafter referred to as the Privacy and Security Regulations) apply to the use and disclosure of Protected Health Information (as that term is defined in HIPAA) which may occur in fulfilling the duties and responsibilities delineated in the Agreement. Grantee agrees that any Protected Health Information that it receives directly or indirectly, whether or not

inadvertently, through its employees or agents, regarding CRMC's patients shall be treated as confidential in compliance with all state and federal laws, including but not limited to HIPAA and the Privacy and Security Regulations. Furthermore, Grantee agrees to execute any necessary documents to comply with such state and federal laws and regulations, including a Business Associate Agreement if necessary.

16. Governmental Immunity. The parties acknowledge that neither CRMC nor Grantee, by entering into this Agreement, waive the tort immunity provided to each of them by the Wyoming Governmental Claims Act, W.S. § 1-39-101 et seq. (the "Act"), and each party retains all immunities and defenses provided to it by the Act. Furthermore, as contemplated by the Act (in W.S. § 1-39-104(a)), each party specifically reserves to itself immunity from actions based upon contract, including actions based upon this Agreement. Any part of this Agreement that conflicts either with the tort immunity provided by the Act or with either party's reservation of contractual immunity under this Section shall be void and of no effect. Any actions or claims against either party under this Agreement, to the extent that the same are permissible under the terms of this Section and/or applicable law, must be brought in accordance with the procedural requirements of the Act. In the event that either party makes a claim against the other party that is not in accordance with the Act's procedural requirements, the party making such claim shall reimburse the other party for all costs, including reasonable attorneys' fees, incurred by the other party in defending such claim.

17. Entire Agreement/Modifications. This Agreement (including the documents referred to herein) constitutes the entire Agreement between the parties, superseding all prior communications, oral or written. No statements, promises or inducements made by either party or agent of either party, express or implied, shall be valid or binding if not contained in the written Agreement. No modifications to the Agreement shall be effective or binding unless in writing and signed by authorized representatives of the parties hereto. This section shall not be deemed waived by any alteration or modification, which does not conform to the above provisions of this section.

18. Counterparts. This Agreement may be executed simultaneously, in one or more counterparts, each of which shall be deemed an original but all of which shall together constitute one and the same instrument.

19. Change of Law. The terms of the Agreement are intended to be in compliance with all federal, state and local statutes, regulations and ordinances applicable as of the Effective Date. In the event of conflict, the state and/or the federal law will supersede the terms of the Agreement. The parties agree to execute such amendments as may be necessary for compliance with such laws or regulations as they are promulgated or become final and effective. In the event that any federal or state legislative or regulatory authority adopts any law or regulation which (a) renders the Agreement illegal or prohibited by applicable law or regulation; (b) threatens CRMC's tax-exempt status; (c) establishes a material adverse change in the method or amount of reimbursement or payment for services under the Agreement; (d) imposes requirements which require a material adverse change in the manner of either party's operations under the Agreement or (e) legal counsel for either party gives a good faith opinion that the application of any law, regardless of when adopted, poses a substantial threat of any of the foregoing, then, upon the request of either party, the parties will enter into good faith negotiations for the purpose of establishing such amendments

or modifications as may be appropriate in order to accommodate the change in law or regulations while preserving the original intent of the Agreement to the greatest extent possible. If, after fifteen (15) days of such good faith negotiations, the parties are unable to reach an agreement as to how the Agreement will continue, then either party may terminate the Agreement upon one (1) day prior written notice. Notwithstanding the foregoing, if the change in law requires the immediate termination of the Agreement, the Agreement will be deemed to be so terminated.

20. Cooperation Regarding Medicare Reimbursement. Grantee will make available to CRMC, the Secretary of Health and Human Services or to the Comptroller General of the United States (or to any of their duly authorized representatives) copies of this Agreement (including all amendments thereto) and its books, documents and records to the extent necessary to verify the nature and extent of the consideration exchanged by the parties hereunder. Such access shall be limited to a period of four (4) years after the furnishing of the services hereunder. If access is requested by CRMC, CRMC shall provide reasonable notice to Grantee of its desire for access, and access shall be provided at a reasonable time by Grantee. All other access permitted hereunder shall be provided in accordance with the written regulations established by the Secretary of Health and Human Services. Should Grantee carry out any of its duties through a sub-contract with an organization that is “related to” Grantee (within the meaning of 42 C.F.R. § 420.301), that sub-contract shall contain a clause placing the same duty on the organization as this Section places on Grantee.

21. Severability. In the event that any provision of the Agreement (or portion thereof) is determined by a court of competent jurisdiction to be invalid or otherwise unenforceable, such provision (or part thereof) shall be enforced to the extent possible consistent within the stated intention of the parties, or if incapable of such enforcement, shall be deemed to be deleted from the Agreement, while the remainder of the Agreement shall continue in full force and remain in effect according to its stated terms and conditions.

22. No Conflict. Grantee warrants and represents that Grantee is not violating or breaching any term or condition of any other agreement, including any covenant not-to-compete or employment agreement, by entering into this Agreement. In the event Grantee breaches this warranty, Grantee agrees to indemnify, defend and hold CRMC harmless from any claim brought against CRMC by any person or entity claiming to be damaged by Grantee’s breach of violation of such agreement.

23. Survivability. Any provision of this Agreement that by its very nature should survive the termination of this Agreement shall be deemed to so survive. Without limiting the generality of the foregoing, Sections 10, 13, 14, 18 and 25 of this Agreement shall be deemed to survive the termination of this Agreement.

24. Headings. The headings contained herein are for reference only and are not a part of this Agreement and shall not be used in connection with the interpretation of this Agreement.

25. Contract Interpretation. Each party hereto acknowledges that it has had ample opportunity to review and comment on this Agreement. This Agreement shall be read and interpreted according to its plain meaning and an ambiguity shall not be construed against either

party. It is expressly agreed by the parties that the judicial rule of construction that a document should be more strictly construed against the draftsman thereof shall not apply to any provision of this Agreement.

26. Equal Access. The parties acknowledge that they make no distinction in the rendition of services or benefits to patients on the grounds of race, religion, color, creed, national origin, sex, age, handicap, or ability to pay.

27. Trademarks and Copyrights. Each party reserves the right to the control and use of its respective names, copyrights, symbols, trademarks and service marks presently existing or later established. Neither party shall use the other party's name, copyrights, symbols, trademarks or service marks in advertising or promotional materials nor otherwise without the approval of the other party, and any such approval granted shall be withdrawn immediately upon the earlier of written notice of such other party or termination of this Agreement. Each party hereby grants the other party the non-exclusive right to use the name, address, specialty and other pertinent biographical data of such party in connection with the obligations of the respective parties hereunder.

28. Inclusion on Master List of Contracts. The parties agree that this Agreement will be added to the master list of contracts kept by CRMC, which may be referenced to determine the status of all current agreements pursuant to which Grantee "furnishes", as that term is defined in C.F.R. 411.357(d)(ii), items or services to CRMC. CRMC's master list of contracts is maintained by its Legal Services Coordinator at 214 E. 23rd St., Cheyenne, Wyoming 82001.

[SIGNATURES OF FOLLOWING PAGE]

**MEMORIAL HOSPITAL OF LARAMIE COUNTY D/B/A CHEYENNE REGIONAL
MEDICAL CENTER**

By: _____

Name: _____

Title: _____

Date: _____

GRANTEE:

By: _____

Name: _____

Title: _____

Date: _____

EXHIBIT “A”

SPECIFIC GRANT REQUIREMENTS/DELIVERABLES

- CRMC should enter into a contract with the Office of Youth Alternatives to provide the following deliverables in prevention in Laramie County by June 15, 2028:
 1. Attend a minimum of nine (9) out of the twelve (12) Behavioral Health Action Team meetings within the period of performance.
 2. Pay for services equivalent to that of a part-time master’s level clinician, primarily responsible for working on suicide prevention, intervention, and postintervention.
 3. Pay for evidence-based staff development opportunities.
 4. Reporting
 5. Complete and submit **quarterly** reports **within 5 business days** of the dates indicated below:
 - a) August 30, 2026
 - b) November 30, 2026
 - c) February 26, 2027
 - d) June 30, 2027
 - e) August 31, 2027
 - f) November 28, 2027
 - g) February 29, 2028
 - h) June 15, 2028
 - Reports must include data by month and cumulative data for the grant period on the following:
 - a) Number of suicide evaluations completed and outcomes of assessments
 - b) Number of suicide deaths for youth working with Youth Alternatives
 - c) Percentage of youth seen on the same day of the referral
 - d) Number of referrals made for family support after suicide
 - e) Number of sessions conducted to support youth/families
 - Reports documenting the deliverables, benchmarks and any other requirement will be submitted by the Grantee to CRMC’s Office of Community Health.
- Grantee will be paid **monthly** upon invoice, not to exceed the amount listed below.
 - Year 1 Budget (July 1, 2026 – June 30, 2027): forty-four thousand dollars (\$44,000.00)
 - Year 2 Budget (July 1, 2027 – June 15, 2028): forty-four thousand dollars (\$44,000.00)
 - Each Grantee submitted a budget for Year 1 and Year 2. Funds not spent in Year 1 may be reallocated and not put towards Year 2.
- Invoices/expenses over 3 months old will not be reimbursed.
- Payment is contingent upon satisfactory completion and documentation of all required deliverables.
- Grantee will utilize the grant funding for those activities specifically outlined in this exhibit. Requests to redirect funding must be submitted in writing to CRMC’s Office of Community Health. CRMC’s Office of Community Health will indicate their approval or denial of such

requests in writing to the Grantee. Funds shall not be redirected or expenditures made until written approval is granted.

- All invoices and reports should be sent to **countyprevention@crmcwy.org**